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# The Right Seat

## Hire Your First Driver — and Build Them Into Your Business Partner.

MICHAEL THOMAS



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# The Right Seat

*The Make-or-Break Guide to Hiring Your First Driver, and Building Them Into Your Business Partner*

**MICHAEL THOMAS**

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# Contents

A word before you hire . . . . . 4

Prologue: The hire that makes or breaks you . . . . . 5

1 Windshield time . . . . . 6

2 Why they quit . . . . . 8

3 The hundred-and-fifty-thousand-dollar stranger . . . . . 10

4 Look local, look close . . . . . 12

5 Reading the record . . . . . 14

6 The job-hopper pattern . . . . . 16

7 The interview that isn't an interview . . . . . 17

8 Stop hiring a driver. Build a partner. . . . . 19

9 The Driver Developmental Program . . . . . 21

10 Direction, consistency, systems . . . . . 22

11 Breaking the tension . . . . . 23

12 Driver to owner to broker . . . . . 25

Your first 30 days with a driver . . . . . 27

Epilogue: The right seat . . . . . 28

Sources . . . . . 29

# A word before you hire

I've spent more than 25 years in this business, and I can tell you when most trucking companies are won or lost. It isn't the day you get your authority, and it isn't the day you buy the truck. It's the day you put a human being in the seat.

The number one thing that destroys most trucking companies is the driver. When you think about what we do, it's almost ridiculous. We put hundreds of thousands of dollars into equipment and then hand it to a stranger to operate. That one decision, who drives, is either going to push your company forward or quietly kill it. Nobody warns you about that. So I am.

This book's for the person starting out: the new carrier, the broker, the dispatcher, the investor who just bought a truck, the owner-operator thinking about a second driver. They treat this like filling a seat. You're really choosing the pilot of a very expensive aircraft that carries your whole business down the road at seventy miles an hour.

I don't believe in hiring drivers. I believe in partnering with professionals who want to grow something together. That's what this book teaches. Read it, use it, and go find the right person for the right seat.

*Michael Thomas*

PROLOGUE

# The hire that makes or breaks you

Picture two carriers. They're made up, but I've watched both of them happen more times than I can count. They start the same week with the same money, the same authority and the same truck. Six months later one's growing and one's gone. The freight market didn't do that, and neither did luck. It was the driver each of them chose, and what each of them did after choosing.

The first owner hires fast. A driver knows a driver who knows a driver. The seat's filled in a week. He never meets the person, never pulls a record, never asks a real question. Within ninety days there are violations on the record and shortcuts in the logs, and the truck needs thousands of dollars in work it never should have needed. Now they're texting each other in anger over a load that barely paid. By month six the driver's gone, the safety record's a mess, the insurance renewal hurts and the company folds.

The second owner treats the hire like hiring a pilot. She looks local. She pulls the record. She reads the pattern of where this person has worked and why they left. She asks questions like a partner would. And once that driver's in the seat, she doesn't leave them alone out there. They've got a plan, people behind them and a way to make more money than driving alone ever could. That driver's still with her, and the company has three trucks.

Same start. Different ending. One thing changed, and it was how each owner dealt with the human being behind the wheel.

This whole book is about becoming the second owner.

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***A load ends at the dock. A hire keeps working, for you or against you, every mile after you make it.***

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CHAPTER

# 1 Windshield time

*Who your driver really is*

Before you can hire a driver, you've got to understand what this job does to a person. The person you meet on Tuesday isn't the person alone in the cab at two in the morning on Friday.

I call it windshield time. Up to eleven hours of driving in a day, alone, staring through the glass, no coworkers, nobody down the hall. It's one of the most isolating jobs in America, and it shapes the person you're about to trust.

The research isn't gentle. A national survey by the federal government's National Institute for Occupational Safety and Health, published in 2014, found about 69% of long-haul truck drivers were obese, against 31% of other U.S. workers, and 51% smoked, against 19%. Sitting all day, truck-stop food and broken sleep are hard on a body. Being alone that much is hard on a mind. In one survey of more than 300 male truck drivers at a North Carolina truck stop, about 28% reported loneliness and about 27% reported depression. That's one place, and people reporting on themselves, but it matches what I've seen.

Then there's the drug and alcohol side. As of the fall of 2026, FMCSA's Clearinghouse had logged more than 417,000 violations since it opened in January 2020. Almost 219,000 drivers were in prohibited status, and about 174,000 of those hadn't even started the return-to-duty process. Some of those people are looking for a seat. That's exactly why the check in Chapter 5 isn't optional.

Now let me be careful about what I'm telling you, because this is where people go wrong. I'm not telling you to look at somebody and guess whether they're depressed, or to ask them about it in an interview. Federal law limits what you can ask about health and disability before you make an offer, and a guess isn't a record anyway. The DOT medical exam is where a driver's medical fitness gets looked at, and your hiring process has rules. What I'm telling you is to understand the job. Build a company where nobody's alone out there, where the schedule lets people sleep, and where someone calling you with a problem doesn't get punished for it.

Most people who put a driver in a truck never think about any of this. Just thinking about it puts you ahead. You can't lead a driver you don't understand.

**KEY POINTS**

- Windshield time makes this one of the most isolating jobs in America.
- The job is hard on the body and the mind, and that's a safety matter for your company. Run your company with that in mind.
- Understand the job. Don't diagnose the person. Medical fitness goes through the DOT process, and health questions before an offer are limited by law.

CHAPTER

# 2
# Why they quit

*The grass-is-greener trap*

If you want a driver who stays, you've got to understand why drivers leave, because this whole industry's built on them leaving. Back in 2018 the American Trucking Associations reported turnover at large truckload carriers at 98% a year. That number moves around, but in my experience almost every driver leaves. Drivers move from one truck to another truck to another truck, chasing a number on a recruiter's flyer.

There are so many job opportunities for them that it's made their minds go crazy. Everybody wants them. And you'll see it. I've had a driver I'd never met give me his list of demands before he got in the truck. New mattress, change the cab filter, do this, do that. It reminded me of those shows where the guest gets a little room and a list of snacks. I asked him if he'd like some cheese with his wine.

But here's the truth under all that. A driver's income has a ceiling, and most of them can feel it even if they can't name it. A driver gets paid to drive, and a human being can only legally and safely drive so many hours. When your income's capped by the clock and the bills keep climbing, the only thing that feels like a raise is jumping to the next company for a few more cents a mile. So they jump. And the ceiling moves with them.

The worst version of this is the owner-operator who owns the truck and is also the only driver. On paper, independent. In real life, a business with one point of failure. The day that truck breaks down, and every truck breaks down, the income stops, and there's a repair bill on top of it. I've met a lot of drivers who were great as company drivers and tanked when they went into business. Being able to back it in on a dime doesn't make you good at business, and when you're behind the wheel eleven hours a day there's not much time to learn it.

So when you look at a work history and see six months here, a year there, six months over there, understand what you might be looking at. Maybe somebody who's never been given a reason to stay. If you can be the one who gives them direction and a way up, you can sometimes keep a driver the whole industry says can't be kept.

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***Drivers quit because their income has a ceiling and nobody's shown them how to get past it. Show them the ceiling can move.***

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CHAPTER

# 3
# The hundred-and-fifty-thousand-dollar stranger

*The risk nobody counts*

Let's be blunt about what a hire is. You're handing the keys to an expensive truck, plus the legal liability of an 80,000-pound vehicle on public roads, to somebody you may have known for a week. Everything you own is riding on their judgment and their honesty. And most owners spend more time researching a used pickup online than they spend on the person they just made responsible for all of it.

I'm not interested in searching for strangers. I've done those interviews for over 25 years. You can put anybody on the phone with me, they can tell me anything in the world, and I still don't have a clue who that person is.

A bad hire costs you money fast. A driver who doesn't care rides the brakes, skips the pre-trip, ignores the warning lights, and hands you back a truck that needs thousands in repairs it never should've needed. I've had someone call me because their driver just left the truck at a truck stop. Took a bus or an Uber and said, I'm done. It took thousands of dollars to get that truck back, the load was late, and the equipment sat unattended in the middle of nowhere. I had a driver of my own get hot over something and tell me, "I'll pull this thing over and just leave it." They know they've got you.

Then there's the part that can end you in one afternoon, which is the courtroom. After a serious crash, a plaintiff's lawyer doesn't only look at the crash. They look at who you hired and whether you checked. In one billion-dollar verdict in this industry, attorneys alleged the carrier hired a driver with no CDL and no background check, among other failures. In my experience, "I didn't know" doesn't help you when the record was there to look at. Ask your attorney.

This risk doesn't get counted because it hasn't happened yet. The good news is you can do a lot about it, and it's cheap. The next chapters show you how.

**KEY POINTS**

- A hire hands a stranger your truck and your liability. Give it the weight it deserves.
- A careless driver can hand you back a ruined truck and a wrecked safety record.
- After a crash, your hiring file is one of the first things anybody looks at. Keep a good one.

CHAPTER

# 4

# Look local, look close

*Where the right driver is*

The right driver's usually closer than you think, and the wrong one's usually the one who found you first.

Try looking locally where you live first. I grew up in a small farming town where everybody knew everybody, and there were a lot of truck drivers around. Why not look where you are? A driver who lives near you has roots and a name to keep clean, and you can hold them accountable. If I hire a driver out of California and I'm down in the backwoods of Georgia, how do I hold that person accountable? Locally, I can sit down with them and say, listen, here's my business plan. Home time's one of the biggest reasons drivers leave, too, so a driver you can keep close to home is a driver you've got a real chance of keeping.

Now look for skills. A CDL means somebody passed a test. It doesn't tell you whether they understand the equipment, can back into a tight dock, know what the warning lights mean, or can keep their logs and their cool under pressure. My standard's at least two years of experience with a clean driving record. Less than that is going to affect your insurance cost, because in my experience your primary liability price follows your driver's record. And somebody with a couple of years has been out there. They know what could happen and what does happen. They bring something to the table.

Watch the movement pattern before you fall in love with the resume. I'll spend all of Chapter 6 on that.

And look at the whole person. Are they steady? Do they answer straight? Do they own their mistakes, or does everything turn out to be somebody else's fault? You're choosing someone to build with. A local driver you can look in the eye gives you a much better shot at finding that out.

This decision doesn't need to happen overnight.

**KEY POINTS**

- Start local. A driver with roots has a reason to stay, and you can hold them accountable.
- A CDL's a test result. Look for real experience you can confirm. Two years with a clean record is my standard.
- You're choosing somebody to build with, so take your time.

CHAPTER

# 5
# Reading the record

*The pilot's background check*

You wouldn't let a pilot fly your family without checking their record. The tools for checking your driver are cheap and fast, and a lot of people skip them. This isn't legal advice. Follow the federal hiring rules and get the permission each one requires. These are the checks a serious carrier runs.

**Pull the PSP report.** FMCSA's Pre-Employment Screening Program shows a driver's five-year crash history and three-year roadside inspection record from federal data, with the driver's written permission. It's voluntary, and it's cheap. FMCSA's enrollment agreement lists $10 a report, plus a $25 yearly subscription for a carrier with 99 or fewer trucks, so check the current fee. FMCSA's own fact sheet says carriers who used it lowered crash rates by 8% on average and driver out-of-service rates by 17%. A crash on it means the driver was involved. It doesn't say who caused it, so ask. It's a background report, so the Fair Credit Reporting Act steps apply: FMCSA's own form has you give the applicant a copy and a summary of their rights before a final decision against them, or notice within three business days if they applied remotely.

**Run the full stack.**

- The completed application, the license and the medical qualification, and a road test or what the rules accept in its place.
- The motor vehicle record, the MVR, from each state where they held a license in the past three years.
- A pre-employment full query in the Drug and Alcohol Clearinghouse, with the driver's consent given inside the Clearinghouse.
- A pre-employment drug test with a verified negative result back before they drive, unless a specific exception truly applies.
- Their safety history from the DOT-regulated employers they worked for in the past three years. Actually call those employers.
- A complete Driver Qualification File. It's a legal requirement, and when somebody asks what you checked, it's your answer.

**Then read the person like a pilot's logbook.** What endorsements do they hold, and do they use them? What's on the record: speeding, following too close, hours-of-service violations? Do they understand the equipment, or do they go blank on a basic question about a regen or a pre-trip? Ask it politely and watch how they answer. A professional lights up talking about the work. A problem gets defensive.

The record tells you what they did. The conversation tells you who they are.

**KEY POINTS**

- PSP: five years of crashes, three years of inspections. Voluntary, with written permission.
- Then the MVR, the Clearinghouse, the drug test, employer history and a complete file.
- The application, license, medical, road test or accepted equivalent, Clearinghouse full query and verified negative all come before they turn a wheel. Only the driving records and employer replies get a 30-day window.

CHAPTER

# 6
# The job-hopper pattern

*What six-months-and-gone really predicts*

I want a whole chapter on this, because it's the thing people talk themselves out of seeing. A driver who's been with one company after another for six months to a year each will very likely do the same thing to you. Past behavior's the best predictor you've got, and it's written down in black and white.

Now be fair about it. Good drivers leave for good reasons: a carrier that didn't pay, a fleet that ran them into the ground, a company that closed, home time that was promised and never came. One or two changes with a clear, honest story behind them is normal. You're looking for the difference between somebody who left specific bad situations and somebody who leaves everywhere.

So ask them directly why they left each one. The honest driver gives you specifics. The chronic hopper gives you a vague complaint about "management" every time. Then check what you can. Do the dates match what the employers tell you? Don't fill the holes with your own story. A gap's a question until you've got the answer.

Here's the deeper truth, and it ties back to Chapter 2. The chronic job-hopper usually isn't disloyal. They're unled, and they've hit that ceiling. So the pattern isn't always a no. Sometimes it's an opportunity, if you're truly prepared to be the carrier that finally leads them. But go in with your eyes open. If you're not going to develop this person and they've got a five-carrier pattern, believe the pattern and keep looking.

***Whatever made them leave the last five carriers will make them leave you, unless you become the first carrier to lead them.***

CHAPTER

# 7

# The interview that isn't an interview

*How to read a person*

Most owners, investors and even experienced CDL holders I've met over the years share one big weakness. They don't know how to deal with a driver. They can't read the person across the table, they don't know what to ask, and they can't tell a professional having a hard month from a problem waiting to happen. So the interview turns into an interrogation or a formality, and you don't get the truth from either one.

Stop interviewing and have a conversation. Sit with them like a future partner would. Ask open questions and then be quiet.

- "Walk me through why you left your last two companies."
- "Tell me about the worst breakdown you ever handled and what you did."
- "What does a good week look like to you?"
- "How do you handle a delivery appointment you can't safely make?"

You aren't listening for perfect answers. You're listening for ownership or blame, calm or a chip on the shoulder, somebody proud of the work or somebody who only talks about money.

Pay attention to how they do it. Did they show up on time for the conversation itself? Do they answer straight, or do they dodge? When you ask about a violation on their record, do they own it and tell you what they learned, or do they blame the officer, the weather and the dispatcher? How somebody handles an uncomfortable question in a calm room tells you a lot about how they'll handle a broken-down truck at midnight in the rain.

Keep it about the work. Ask everybody the same job-related questions, keep your notes factual, and leave health, family plans, religion and anything like that out of it. The federal application asks for a date of birth, and an interstate driver has to be at least 21. Beyond that, age stays out too. Those aren't your

business in an interview, and the law has a lot to say about them. A quiet person isn't automatically a bad driver, either.

Treat them with respect while you do it, because that tells you something too. A driver who's been treated like a disposable pair of hands their whole career will visibly change when somebody finally talks to them like a professional. The ones who lean in, get thoughtful and start asking you good questions back are the ones you can build with.

**KEY POINTS**

- Replace the interrogation with a conversation. Ask open questions, then stay quiet.
- Listen for ownership versus blame.
- Keep it about the work, and ask everybody the same job-related questions.
- The ones who rise when treated like professionals are the ones to build with.

CHAPTER

# 8

# Stop hiring a driver. Build a partner.

*The mindset change*

Here's the mistake people make in the trucking business. When you bring on a driver, that driver's almost a business partner. It's a very important decision. A driver's a cost. A partner's an investment that keeps paying. A driver watches the clock. A partner watches the business. A driver leaves for three more cents a mile. A partner stays because you're building something together.

You'll want to share your company's vision with them, and show them how working with you can grow them too. Your job is to be the information of the freight. Their job is to take the deal and get it delivered. That's why I call it the art of the deal. Everything we do in this industry is based on a deal: the deal with your shipper, the deal with your carrier, and the deal with your driver. The deal isn't "drive my truck for a wage." The deal is, "Build this with me, I'll show you how to earn more than driving alone ever could, and I won't leave you out there alone."

What can change a bad attitude? The purpose of your company. Give them a reason to want to drive for you.

And drivers don't stay for equipment. I've kept drivers for years in older trucks, and I've watched carriers with brand-new equipment lose drivers every quarter. They live in a logistical nightmare: dispatch changing plans, brokers canceling loads, nobody telling them what tomorrow looks like. Hand a driver a plan and a clear way the revenue grows, and you've given them something the next carrier's flyer doesn't have.

Now let me give you the other side, because I've learned this one the hard way. Partner doesn't mean best friend, and it doesn't mean a legal partnership unless your attorney wrote one up. We don't want to be best friends with our drivers. When that happens they start telling you where to go and what to do. I told a driver not long ago, "Man, I think I work for you." You want drivers who'll help grow and build with you, without controlling you. Keep it

professional. Turn them into coworkers and business people, and you'll have a better working relationship.

This is strategy, plain and simple. A partner looks after your equipment because it's part of their future. A partner keeps a clean record because the business depends on it. A partner brings you other good drivers. Get the right person, make them a partner, and everything else in trucking gets easier.

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***Drivers don't stay for new equipment. They stay for direction, consistency and systems.***

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CHAPTER

# 9

# The Driver Developmental Program

*How we build a professional*

No driver we work with is "just a driver." We approach every one of them as a business professional in training. We don't wait for the perfect driver to show up. The perfect driver is a quest you have to go after, and part of it is building them.

**First, nobody's alone.** Too much windshield time and isolation is what breaks drivers down and runs them off. So we put people around every driver: help with dispatch, planning and problems. When something goes wrong at midnight, there's a person on the phone. If you're one truck, you might not have a team yet. Then it's you and your dispatcher, with a clear plan for who answers. Just be honest about the workload.

**Second, we teach the business.** Teach them how a load's priced, how a lane gets built and how the deal really works. Your driver's on every dock. They're your eyes and your voice out there, and they can bring you shipper information from every dock they visit. A driver who understands the business makes better decisions and starts seeing themselves as a builder.

**Third, we show them the path.** Income capped by the clock is why they jump. So show them the way past it: from driver, toward owning the truck, toward brokering freight, where income isn't limited by how many hours one person can drive. Drive, then own, then broker and build. That's how you keep a driver for the long haul. Three more cents won't do it.

**KEY POINTS**

- Treat every driver as a business professional in training.
- Don't leave them alone. Connection's how you keep people.
- Teach the business, and show them the ladder.

CHAPTER

# 10

# Direction, consistency, systems

*The three things a driver actually wants*

If you remember nothing else from this book, remember these three words. Owners obsess over pay rates and equipment, and they miss that the driver's drowning in chaos and would trade a lot of money for a little order.

**Direction** means the driver always knows where this is going. The next load, the plan for the month and the future you're building together. A driver with direction stops guessing and starts trusting.

**Consistency** means your word holds. Home time happens when you said it would. The pay's right and on time. The plan doesn't change five times a day. In a business full of broken promises, a carrier whose word is good is a carrier a driver won't leave.

**Systems** mean there's a way things get done: a routine for dispatch, for maintenance, for problems. Then the driver isn't making it up alone in a crisis every week.

Those three cost you almost nothing, and they beat almost everything the competition offers. A bigger carrier can outspend you on the flyer. Most of them are as chaotic inside as anybody else, which is exactly why their drivers keep leaving. You can't out-pay the big fleets, but you can out-lead them.

A driver wants to be led. They don't want to be bossed, micromanaged or treated like a number. Someone with a plan, whose word is good, with room to grow inside it.

***Direction, consistency, systems. They cost almost nothing, and no mega-carrier can outspend them.***

CHAPTER

# 11

# Breaking the tension

*Ending the war between owners and drivers*

There's a tension built into most trucking companies, and if you don't break it, it'll break the company. It's the low-grade war between the owner and the driver. The owner thinks the driver's lazy and careless. The driver thinks the owner's greedy and clueless. They clash over a load that barely paid, the truck breaks down, the driver gets upset, the owner gets defensive, and the whole thing goes sour. I've seen that take down more small carriers than I can count.

And it spreads. Drivers talk. If you've got four or five drivers and one's not happy, they're going to spread the word. One bad apple ruins the bushel.

The root's almost always the same. The owner doesn't know how to deal with the driver, and neither one has a shared direction. With no plan, every problem feels like the other person's fault. A bad load feels like betrayal. A breakdown feels like blame. That's a skills gap, and skills can be learned.

You break it with three things. **Knowledge** of what the driver's actually living out there, so you stop taking their bad day personally. **Direction**, so when a load goes wrong you're both looking at the same plan and not at each other. And **honest, steady communication**, so small problems get said out loud and solved before they harden.

And don't book the bad load in the first place if you can help it. A lot of this tension comes from putting the driver on freight that doesn't pay, then wondering why they're angry and the truck's running for nothing. Part of leading a driver is keeping them out of bad deals. When the driver's making good money and the plan's working, the tension has nothing to feed on.

And when it does go wrong, have a professional way to part ways before you need one. If you've got a clear process for getting your truck back and settling final pay, one bad day doesn't have to turn into a truck left at a truck stop.

**KEY POINTS**

- The owner-driver clash takes down small carriers.
- It's a skills gap, plus no shared plan.
- Knowledge, direction and honest communication end it.
- Keep your driver out of bad loads.

CHAPTER

# 12

# Driver to owner to broker

*Raising the ceiling together*

The last piece is the one that keeps a great driver for life. Give them a ceiling they can get past, and help them do it.

**Step one is ownership.** Help the driver move toward owning a truck: a lease-to-own inside your operation (consult a professional transportation attorney before you offer one), a path to a title, a stake in the equipment. The moment a driver has ownership, things change. They look after the truck because it's theirs, they run smart because the margin's theirs, and they stop looking for the exit. If you don't have equipment, it works the other way too. Sometimes your smartest first move is finding the right owner-operator who already has a truck and building with them. Get lease and ownership deals in writing with an attorney. Federal leasing rules apply, and how you classify somebody matters.

**Step two is brokering.** Teach the driver to broker freight, and you've handed them income that isn't limited by how many hours one person can drive. They'll need to do it properly: brokering takes its own authority, or working under a licensed broker. Done right, this is the whole ladder. Drive, then own, then broker and build. It's hard to recruit somebody away when they're becoming an owner and a broker inside your company.

**Step three is the team, and giving them a way to earn from it.** I've been dealing with a lot of driver situations over the years, and there has to be a reason and a way to keep a driver. I came to the conclusion that you give a driver ways to earn beyond the wheel, like referring other drivers. As an example, a $500 referral bonus for your next great driver, plus $200 a month in referral pay for every month that driver keeps driving for you. Refer two and that's $400 a month. And now your first driver wants that new driver to be happy, because they both benefit. Those amounts are my example. Run them against your own margin, and have your accountant look at how they get paid.

That's the endgame: a partner building the company alongside you, in place of an employee you keep having to replace.

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***A driver's limited by how much they can drive. Move them from driver to owner to builder, and you've got something most of this industry never sees.***

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# Your first 30 days with a driver

Here's the rhythm I'd use. None of it replaces federal hiring rules or legal advice.

**Before day one, finish the file.** The application, the license, the medical qualification, the road test or what's accepted in its place, the Clearinghouse full query and the verified negative all have to be done before they drive, by rule. Only the driving records and employer history get up to 30 days after they start. My policy's stricter. I'd have all of it done first, plus the PSP and your insurance company's okay, because it's your safety and your insurance on the line. That's my policy, so know the difference.

**Week one, set direction.** Sit down and share the plan: how you run, what a good week looks like, how home time works, how they get paid and where this is going past the next load. Introduce whoever's supporting them, so they know from day one they aren't alone out there.

**Weeks two through four, build the partner.** Start the developmental work. Walk them through how a load's priced and how a lane gets built. Ask for their input. Start showing them the path from driver toward owner and broker. Check in honestly and often, and solve small problems out loud before they harden.

**By day thirty,** the driver should feel led, understood and part of something with a future. That's the driver who stays and builds.

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***The file takes care of the company. The plan takes care of the driver. The partnership takes care of both.***

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EPILOGUE

# The right seat

In aviation, the right seat is where the co-pilot sits. That's the partner, the second in command, the professional you trust with the aircraft when you can't fly it alone. That's what this book's really about.

The industry will tell you drivers are disposable, that turnover's just the cost of doing business, that you fill the seat and fill it again. That thinking is hurting small trucking companies. Your first driver isn't a cost to minimize. Chosen well, checked honestly and led right, that person will carry your business further than any load you ever book.

So look local and look close. Read the record. Read the person. Then stop hiring a driver and start building one. Give them direction, consistency and systems. Teach them the business. Help them past the ceiling. Don't leave them alone out there.

Put the right person in the right seat, and drive.

*Michael Thomas*
*Founder, Freight University*

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49 CFR 382.301, 382.701, 391.11, 391.21, 391.23, 391.31, 391.33, 391.41, Part 376: https://www.law.cornell.edu/cfr/text/49